

SUPREME COURT of the STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARTINE DORVILUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KUSH
GREENE TAX ID NO. 945786 of the 63rd precinct, in his
personal and official capacity, POLICE OFFICERS JOHN
DOES 1-10 of the 63rd precinct (identities are presently
unknown), in their personal and official capacity, ALL
POLICE OFFICERS INVOLVED IN THE INCIDENTS
CLAIMED HERE IN, and JOHN DOES 11-15 of the 63rd
precinct (identities are presently unknown) SUPERVISORY
POLICE OFFICERS VESTED AND CHARGED WITH
COMANDING AUTHORITY OVER THE POLICE
OFFICERS AS CLAIMED HEREIN all in their individual and
official capacities,

Defendant (s),
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, NY 11229

April 2, 2014

Notice: The object of this action is to recover for
personal injury due to defendant(s) negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default with interest from 4/26/2013 and the costs of this action

Summons and Complaint

Index No.

Plaintiff(s) designates KINGS
County as the place of trial
The basis of venue is
Plaintiff's residence
5409 Avenue O
County of KINGS



BY: ALEXANDER ROYTBLAT, ESQ.

This SUMMONS AND COMPLAINT and the
papers on which it is based, are certified pursuant to
Section 130-1.1-a of the rules of the Chief
Administrator (22NYCRR)

ROYTBLAT & KALANT, PLLC

Attorneys for Plaintiff

Office and Post Office Address

1928 Kings Hwy. - 3rd Floor

Brooklyn, New York 11229

(718) 872-6374

DEFENDANTS' ADDRESSES

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

PO KUSH GREENE
63rd Precinct
1844 Brooklyn Avenue
Brooklyn, NY 11210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARTINE DORVILUS,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KUSH
GREENE TAX ID NO. 945786 of the 63rd precinct, in his
personal and official capacity, POLICE OFFICERS JOHN
DOES 1-10 of the 63rd precinct (identities are presently
unknown), in their personal and official capacity, ALL
POLICE OFFICERS INVOLVED IN THE INCIDENTS
CLAIMED HERE IN, and JOHN DOES 11-15 of the 63rd
precinct (identities are presently unknown) SUPERVISORY
POLICE OFFICERS VESTED AND CHARGED WITH
COMANDING AUTHORITY OVER THE POLICE
OFFICERS AS CLAIMED HEREIN all in their individual
and official capacities,

Defendants.

-----X
Plaintiff, complaining of the defendants, by his attorney, upon information and belief,
respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all the times herein mentioned, the defendant POLICE OFFICER KUSH GREENE TAX ID NO. 945786 of the 63rd precinct (hereinafter referred to as GREENE) was and still is a police officer employed by defendant, CITY.
3. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant CITY and with the Comptroller of the defendant CITY

and with the Legal Department of the NEW YORK CITY POLICE DEPARTMENT (hereinafter NYPD), within 90 days after the cause of action herein accrued.

4. That 30 days have elapsed since filing Notice of Claim and that a hearing was not held.
5. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented for adjustment and that the Comptroller has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.
6. That on April 26, 2013 at approximately 10:30am on or around East 51st Street between Avenue K and Avenue L, Brooklyn, New York, defendant, GREENE together with other police officers, whose names and number are presently unknown to plaintiff, unjustifiably detained and arrested, verbally and physically abused and plaintiff, MARTINE DORVILUS, and did commit an assault and battery upon plaintiff, causing personal injuries, and bodily harm.
7. That on April 26, 2013 at approximately 10:30am on or around East 51st Street between Avenue K and Avenue L, Brooklyn, New York, defendant, GREENE together with other police officers, whose names and number are presently unknown to plaintiff, did handcuff, falsely arrest, falsely charge, unlawfully detain and maliciously prosecute plaintiff with various violations of the New York State penal law.
8. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.
9. That at all times herein mentioned, and specifically on April 26, 2013, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, were on duty as Police Officers for defendants CITY and NYPD.
10. That at all the times herein mentioned, and specifically April 26, 2013, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, were in uniform as Police Officer for Defendants CITY and NYPD.

11. That at all the times herein mentioned, and specifically April 26, 2013, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, were acting within the scope of their employment as police officer for defendant CITY and NYPD.

12. That the defendants CITY, NYCPD and defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm; in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities; who would assault and commit battery on law abiding individuals; law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force and restraint against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

13. That at all the times herein mentioned, the actions of the defendants CITY, NYCPD, and defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff were negligent and not in accordance with proper procedures and regulations.

14. That said occurrence and the resulting prolonged incarceration and personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

15. That by reason of the foregoing, the said plaintiff was caused to sustain prolonged incarceration, serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and therefore incurred substantial loss of wages for such period of time in

all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

16. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 15 of this complaint with the same force and effect as though fully set forth herein.

17. That on or about April 26, 2013, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff.

18. That at the time of such malicious prosecution, the defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff were employees of the defendants CITY and NYPD and were acting as the these defendants' agents in doing the acts complained of herein and was acting within the scope of his authority and while they were acting or attempting to be acting in the defendants' interest.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

19. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 18 of this complaint with the same force and effect as though fully set forth herein.

20. That or about April 26, 2013, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff were negligent in causing and allowing and/or permitting their body or parts thereof to come in contact with the person of the plaintiff in

such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

21. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 20 of this complaint with the same force and effect as though fully set forth herein.

22. That on or about April 26, 2013, the defendants alleged that the plaintiff committed a theft of a motor vehicle and was in possession of stolen property, thereupon without warrant, probable cause or sufficient justification, arrested the plaintiff on the alleged charges and restrained and booked the plaintiff and deprived the plaintiff of her liberty.

23. That the charges filed by the defendants were false and unsupported by the facts or the evidence.

24. That the defendants knew that the charges were false and unsupported by the facts or the evidence.

25. That in making this charge and in causing the arrest and detention of the plaintiff the defendants acted maliciously and wrongfully and with improperly and with intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff as well as readily available exculpatory evidence.

26. That the charges brought by the defendants were dismissed by the District Attorney by declining to prosecute her and the criminal matter was disposed of in plaintiff's favor.

27. That at the time of such malicious prosecution, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff were employees of the defendants CITY and NYPD and were acting as the defendants', CITY, NYPD, agents in doing the acts complained of herein and were acting within the scope of their authority and while they were

acting or attempting to be acting in the defendants' interest.

28. That by reason of the foregoing, plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 28 of this complaint with the same force and effect as though fully set forth herein.

30. That on April 26, 2013 the plaintiff was charged by the defendants with larceny and possession of stolen property.

31. That this arrest was illegal and without basis in fact or authority of law.

32. That plaintiff was deprived of his liberty and was held in detention cells until April 27, 2013.

33. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired, and plaintiff suffered great mental distress.

34. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has

incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to her usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS

35. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 34 of this complaint with the same force and effect as though fully set forth herein.

36. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

37. Defendants acted with the desire and intent to cause plaintiff emotional distress or acted under circumstance known to them which made it substantially certain that they would cause such emotional distress.

38. Defendants acted with utter disregard of the consequences of their actions.

39. That as a direct and proximate result of the actions by the defendants, Plaintiff was caused to suffer the intentional infliction of emotional distress.

40. By reason of the foregoing, defendants became liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARTINE DORVILUS
(42 U.S.C. § 1983)

41. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 40 of this complaint with the same force and effect as though fully set forth

herein.

42. The defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, and certain other police officers whose names are not presently known to plaintiff, lacked reasonable suspicion to stop and detain the plaintiff, MARTINE DORVILUS, and further lacked any probable cause to arrest him or retain her in prolonged custody.

43. The wrongful stop, false detainment, assault, wrongful arrest, malicious prosecution, and other wrongful acts conducted against the plaintiff by defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, in their official and individual capacity were committed under color of law, customs, and statutes of the state of New York.

44. Under color of law, the defendants NYC, NYPD, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff in their official and individual capacities deprived the plaintiff MARTINE DORVILUS of her Fourth, Fifth, and Fourteenth Amendment rights to protection from unlawful search and seizure, Equal Protection and Due Process, by falsely arresting, wrongfully detaining, unlawfully, falsely charging the plaintiff with criminal charges, for which there is no evidence or substantiation of any kind and maliciously prosecuting.

45. The accusations of wrongful actions leveled against plaintiff were false and were an attempt to cover up the false arrest, abuse of process, failure to properly investigate, intentional and false imprisonment, false accusations, discriminatory harassment, malicious prosecution, defamation and abuse of process which has been inflicted by defendants on plaintiff.

46. The false arrest of plaintiff MARTINE DORVILUS without probable cause, and other wrongful acts conducted against the plaintiff by defendants, including, but not limited to defendants' unconstitutionally seizing, falsely arresting, intentionally and falsely imprisoning and

detaining, falsely accusing, assaulting, discriminatorily harassing, defaming, and maliciously charging MARTINE DORVILUS constitutes a violation of plaintiff's rights, secured by the Fourth Amendment to the United States Constitution, to be free from unreasonable searches and seizures. Such actions were negligent, reckless, unreasonable and unauthorized, as defendants had a duty to not subject plaintiff to false arrest and detention and summary punishment, but failed to prevent same and breached their duty.

47. The defendants NYC, NYPD, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, acted under color of law to deny the plaintiff her constitutional rights to due process and freedom from seizure, by wrongfully detaining the plaintiff at the 61st Police Precinct and Kings County Central Booking wrongfully charging her and holding her under the threat of imprisonment for an indeterminate period of time, without providing a reasonable basis and/or investigation warranting custody, or other due process guarantees secured to the plaintiff by the Fifth and Fourteenth Amendments of the United States Constitution.

48. Such abuse of process was continued by the defendants NYC, NYPD, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff, in their refusal to adequately investigate the charges against the plaintiff and to properly review and investigate the actions of defendant officers and officials for their actions against the plaintiff. Specifically, defendants failed to investigate and verify the veracity of the plaintiffs' claims, despite the lack of any significant hearing or consideration by the defendants NYC, NYPD, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff for the substantial evidence supporting plaintiff's innocence.

49. As a consequence of defendants' wrongful actions, intentional assault and battery, negligent behavior, and violation of state and federal laws, plaintiff was deprived of his freedom, was subject to great physical harm, was made to suffer great pain and suffering, and was subjected to great fear

and terror and personal humiliation and degradation, and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of defendants CITY, NYPD, defendant, GREENE, together with other police officers, whose names and number are presently unknown to plaintiff in their official and individual capacity.

50. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of her own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

51. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(NEGLIGENT HIRING, TRAINING, SUPERVISING, AND RETAINING)

52. The plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs 1 through 51 of this complaint with the same force and effect as though fully set forth herein.

53. At all the times herein mentioned, the actions of the defendants, through their agents, servants and/or employees, heretofore described, constitutes negligence in that the defendants CITY and NYPD, negligently trained or failed to train its agents, servants, or employees, especially including the defendants, defendants police officers and supervisory police officers, JOHN DOES

11-15, their agents, servants and/or employees.

54. At all the times herein mentioned, the actions of the defendants, through its agents, servants, and/or employees, heretofore described, constitutes negligence in that the defendants, CITY and NYPD, negligently supervised or failed to supervise its agents, servants, or employees, especially including defendant, police officer GREENE and other defendant police officers and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees.

55. At all the times herein mentioned, the actions of the defendants, through its agents, servants, and/or employees, heretofore described, constitutes negligence in that the defendants, CITY and NYPD, negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendant, police officer GREENE and other defendant police officers and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees.

56. At all the times herein mentioned, the defendants, CITY and NYPD, were negligent in its hiring of its agents, servants and/or employees, especially including defendant, police officer GREENE, and other defendant police officers and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees, when the defendants, CITY and NYPD, knew, or in the course of adequate and proper investigation should have reasonably known, that defendant, police officer GREENE, and other defendant police officers herein and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees were unfit to hold their positions.

57. At all the times herein mentioned, the defendants, CITY and NYPD, were negligent in its retention of its agents, servants and/or employees, especially including defendant, police officer GREENE and other defendant police officers and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees, when the defendants, CITY and NYPD, knew, or in the course of adequate and proper investigation should have reasonably known, that the defendants police officers and supervisory police officers, JOHN DOES 11-15, their agents, servants and/or employees, were unfit to hold their positions in that they refused or failed to perform within the

statutory and constitutional limits of their authority and misused and abused their positions.

58. As a result of the negligence of the defendants, CITY and NYPD, and the acts of the defendants police officers and supervisory police officers, JOHN DOES, their agents, servants and/or employees, and other agents, servants and/or employees of the defendants, the plaintiffs, through no fault of their own, were caused to suffer severe and permanent personal injuries, extreme unnecessary pain and suffering, false incarceration and excessive harm to the detriment of their physical and emotional health;

WHEREFORE, the plaintiff(s) demands judgment against the in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

Yours, etc.



ROYTBLAT & KALANT, PLLC
Attorneys for Plaintiff
1928 Kings Highway
3rd Floor
Brooklyn, New York 1122

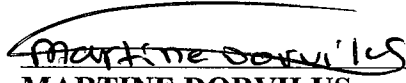
STATE OF NEW YORK)
COUNTY OF KINGS)

The undersigned, affirms that the following statements are true under the penalties of perjury.

That deponent is the plaintiff in the within action; that deponent has read the foregoing SUMMONS and VERIFIED COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Personal knowledge, information and investigation in the file.

This SUMMONS AND COMPLAINT and the papers on which it is based, are certified pursuant to Section 130-1.1-a of the rules of the Chief Administrator (22NYCRR)


MARTINE DORVILUS

SWORN TO BEFORE ME THIS
3rd DAY OF APRIL, 2014



Notary Public

Alexander Roytblat
Notary Public, State of New York
No. 02R06171336
Qualified in Kings County
Expires on 07/23/2015

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

-against-

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Defendant (s),
-----X

SUMMONS and VERIFIED COMPLAINT

ROYTBLAT & KALANT, PLLC

Attorneys for Plaintiff

Office and Post Office Address, Telephone, Facsimile

1928 Kings Highway | 3rd Floor

Brooklyn, New York 11229

TELEPHONE (718) 872-6374

FACSIMILE (718) 872-6375

"WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION (FAX)"

Attorney(s) for

Service of a copy of the within is hereby admitted

Dated:;

.....
Attorney(s) for

PLEASE TAKE NOTICE



NOTICE OF ENTRY That the within is a (certified) true copy of an ORDER entered in the office of the clerk of the within named court on _____, 2014.



NOTICE OF SETTLEMENT That an Order of which the within is a true copy will be presented for settle to the Hon. _____ one of the judges of the within named court, _____ at _____, 2014, at 10:00 a.m.
Dated:

ROYTBLAT & KALANT, PLLC
Attorneys for Plaintiff
1928 Kings Hwy. 3rd Floor
Brooklyn, NY 11229
(718) 872-6374